

Case: CASE-2024-089

Witness: Marcus Williams

Date: February 13, 2024

WITNESS INFORMATION

Full Name	Department
Marcus Williams	Product Engineering
Employee ID	Shift / Hours
NXT-2956	9:00 AM - 6:00 PM (Standard)
Position	Relationship to Parties
Software Engineer	Same team, sits adjacent to Complainant

STATEMENT

I, Marcus Williams, provide the following statement voluntarily regarding Case 2024-089.

I recall an incident in the break room around **January 24, 2024** where Jordan Blake made a comment about Alex Rivera's appearance. I was getting water from the cooler and heard Jordan say something along the lines of:

"You always look so put-together, Alex. It's distracting."

I remember thinking that was a strange thing for a manager to say. Alex didn't respond and quickly left. I'm not 100% certain of the exact date — it was definitely the last week of January, possibly the 22nd through the 25th.

Regarding the overtime requests: My desk is adjacent to Alex's workstation. I personally heard Jordan ask Alex to stay late on **three specific occasions**:

January 28 (Monday): Jordan came to Alex's desk around 5:30 PM and said there was 'urgent work' on the API migration that needed to be done that evening. I was packing up to leave and noticed no one else on the team was asked to stay.

January 30 (Wednesday): Same situation. Jordan asked Alex around 5:15 PM to stay for 'a couple of hours' to review code. Again, no other team members were asked. I stayed late myself that day (until about 7 PM for my own work) and observed that Jordan and Alex were still on the floor when I left.

February 1 (Thursday): Jordan again asked Alex to stay late. This time Alex seemed reluctant but agreed. I left at 6 PM. The next morning, Alex seemed stressed and distracted during standup.

Regarding the **February 5** incident: I was in the team workspace and heard Jordan comment on Alex's haircut. Jordan said something like 'New haircut? I liked it better before, but you still look great.' This was said in front of at least three other team members. Alex's face went red and Alex excused themselves to the restroom.

I want to add that the 'urgent' tasks Jordan assigned to Alex during the overtime sessions did not seem urgent to me. The API migration sprint was on schedule according to our Jira board, and none of the tickets were marked as blockers.

Witness Signature: Marcus Williams | Date: February 13, 2024

Statement Taken By: David Park, HR Investigations Manager

